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TENTATIVE RULING

Defendants Barbara Bills and 11848 Venice LLC's Special Motion to Strike [CCP § 425.16] is GRANTED.

Defendants Barbara Bills and 11848 Venice LLC to give notice.

Application to Seal

Plaintiff moves the Court to seal certain documents filed in support of her opposition. Defendants do not object to that sealing, but the Court notes that Plaintiff has not filed a redacted version of her documents, i.e., she has simply sealed the entire opposition record. Insofar as Plaintiff seeks to seal documents that are already subject to a sealing order, the application is GRANTED. All other documents must be publicly filed. Plaintiff must file redacted versions of her opposition documents within five (5) days of entry of this order.

First Prong: Claim Arising from Protected Activity

To invoke Code of Civil Procedure section 425.16, a defendant need only demonstrate that a suit arises from the defendant's exercise of free speech or petition rights. (See Code Civ. Proc., § 425.16, subd. (b); *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78.) This is determined by "the gravamen or principal thrust of the action." (See *In re Episcopal Church Cases* (2009) 45 Cal.4th 467, 477.) "In the anti-SLAPP context, the critical point is whether the plaintiff's cause of action itself was based on an act in furtherance of the defendant's right of petition or free speech." (*City of Cotati v. Cashman*, supra, 29 Cal.4th at p. 78.) "In making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., § 425.16, subd. (b)(2).)

Code of Civil Procedure section 425.16, subdivision (e), states that "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law" or "(2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law" is considered protected activity under the anti-SLAPP statute. "A special motion to strike is particularly appropriate when the action sought to be stricken is one for malicious prosecution." (*Barak v. The Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 659.) "By definition, a malicious prosecution suit alleges that the defendant committed a tort by filing a lawsuit." (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 735.) Plaintiff's other claim for abuse of process is also based on the same purported tortious conduct, specifically that "Defendants used lawful court process for an improper purpose." (Compl. ¶ 18.) Here, each of Plaintiff's claims is based on filing an unlawful detainer action against Plaintiff, litigating the same, and conduct related thereto. This conduct falls within the purview of Code of Civil Procedure section 425.16, subdivision (e). Therefore, the Court finds Defendants have satisfied the

first prong of the anti-SLAPP statute as to Plaintiff's claims for malicious prosecution and abuse of process, as Plaintiffs' claims arise from protected activity.

Second Prong: Plaintiff's Likelihood of Prevailing on the Merits

If the defendant makes a threshold showing that the challenged cause of action is one arising from protected activity, the burden shifts to the plaintiff to establish a likelihood of prevailing on the complaint. (See Code Civ. Proc., § 425.16, subd. (b)(1).) "In order to establish a probability of prevailing on the claim, a plaintiff responding to an anti-SLAPP motion must state and substantiate a legally sufficient claim." (Wilson v. Parker, Covert & Chidester (2002) 28 Cal.4th 811, 821, superseded by statute on other grounds as noted in Hutton v. Hafif (2007) 150 Cal.App.4th 527, 547, citation, quotation marks, and brackets omitted.) To do so, "the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Ibid., quotation marks omitted.) In considering whether a plaintiff's claim has merit, "the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant," and while "the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim." (Ibid., emphasis in original.)

"There are two main elements of a cause of action for abuse of process: first, an ulterior purpose, and second, a wilful act in the use of the process not proper in the regular conduct of the proceeding. Process is action taken pursuant to judicial authority. Merely obtaining or seeking process is not enough; there must be subsequent abuse, by a misuse of the judicial process for a purpose other than that which it was intended to serve. The gist of the tort is the improper use of the process after it is issued." (Siam v. Kizilbash (2005) 130 Cal.App.4th 1563, 1580, quotation marks, citations, ellipses, and paragraph breaks omitted.) "A plaintiff must plead and prove three elements to establish the tort of malicious prosecution: a lawsuit (1) was commenced by or at the direction of the defendant and was pursued to a legal termination favorable to the plaintiff; (2) was brought without probable cause; and (3) was initiated with malice." (Nunez v. Pennisi (2015) 241 Cal.App.4th 861, 872, quotation marks omitted.)

As to the abuse of process claim, Plaintiff must show more than a finding that certain subpoenas were found to be excessive; she must show that Defendants had an ulterior purpose and that they acted improperly in a way that amounts to abuse of the judicial process. Plaintiff alleges abuse of process based on Defendants causing a default to be issued against Plaintiff despite knowing that Plaintiff had not been properly served, then using that default for the purpose of dispossessing Plaintiff and coercing compliance, as well as issuing subpoenas to Wells Fargo. (Compl. ¶¶ 19-21.) Plaintiff asks the Court to conclude that Defendants had an improper purpose in obtaining a default and seeking to dispossess her based only on the fact that such a judgment would not have been in her favor, but this would allow nearly every action to qualify for an abuse of process finding. The record shows only that Defendants engaged in the legal process of an unlawful detainer action, and when they obtained a default, they issued a subpoena to obtain necessary information relating to that default. In other words, there simply is no evidence that Defendants abused the judicial process. Thus, the Court finds that Plaintiff has not demonstrated a likelihood of prevailing on the merits of her abuse of process claim.

As to the malicious prosecution claim, it is undisputed that Defendants commenced the action, but Plaintiff has failed to show the remaining elements, i.e., that it was terminated in Plaintiff's favor, it was brought without probable cause, and it was initiated with malice. First, "[i]n order for a plaintiff to state a cause of action for malicious prosecution, [she] must plead and prove that the prior judicial proceeding of which [she] complains terminated in [her] favor." (Asia Investment Co. v. Borowski (1982) 133 Cal.App.3d 832, 837.) "A termination is . . . 'favorable' if its nature is such as to indicate the innocence of the accused"; "[i]f, on the other hand, the dismissal is on technical grounds, for procedural reasons, or for any other reason not inconsistent with [her] guilt, it does not constitute a favorable termination." (Id. at pp. 837-838.) Plaintiff alleges that the action was terminated in her favor when the trial court granted judgment on the pleadings in her favor. (Compl. ¶ 27.) The Court cannot conclude that the action was terminated in Plaintiff's favor in a way that shows innocence of the alleged conduct in that case. The action was an unlawful detainer action seeking judgment in Defendants' favor based on her alleged nuisance, interference with access to the unit, and failure to allow reasonable entry in breach of the lease agreement. The motion for judgment on the pleadings, adjudicated in Plaintiff's favor, was one relating to the validity of the three-day notice to cure or quit. The order granting the motion had no analysis of innocence as to the claim of alleged nuisance, interference with access to the unit, and failure to allow reasonable entry in breach of the lease agreement. Thus, the Court cannot conclude that the action was pursued to a legal termination favorable to Plaintiff.

As for the second element, “[a] litigant will lack probable cause for his action either if he relies upon facts which he has no reasonable cause to believe to be true, or if he seeks recovery upon a legal theory which is untenable under the facts known to him.” (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 292.) The Court need only conclude here that Defendants brought a claim based on facts they believed were true, and the invalidity of the three-day notice does not show that they lacked probable cause to believe that they could not prevail on their theory of alleged nuisance, interference with access to the unit, and failure to allow reasonable entry in breach of the lease agreement. Further, to demonstrate the third element, that Defendants litigated the underlying action with malice, Plaintiff must establish “actual ill will or some improper ulterior motive.” (Soukup, supra, 39 Cal.4th at 292, italics omitted.) Notably, “[m]alice may also be inferred from the facts establishing lack of probable cause.” (Ibid.) Plaintiff has not demonstrated that Defendants litigated the action against Plaintiff with malice. Defendants brought an unlawful detainer action based on their belief of Plaintiff’s violation of the lease, and there is no evidence that Defendants had some ill will toward Plaintiff or an ulterior motive for filing the action against her. Thus, the Court finds that Plaintiff cannot demonstrate a likelihood of prevailing on her claim for malicious prosecution against Defendants. Given that Plaintiff cannot demonstrate the likelihood of prevailing on either one of her claims against Defendants, Defendants Barbara Bills and 11848 Venice LLC’s Special Motion to Strike [CCP § 425.16] is GRANTED.

Attorney Fees

Code of Civil Procedure section 425.16, subdivision (c), provides that “a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney’s fees and costs.” Under section 425.16, an award of fees and costs is mandatory. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.) In that Defendants are the prevailing parties, they are entitled to their reasonable attorney fees and costs, the amount of which shall be determined upon Defendants filing a noticed motion for attorney fees and memorandum of costs.